

# An Act

ENROLLED HOUSE  
BILL NO. 3419

By: Strom, West (Josh), Archer,  
Crosswhite Hader,  
Dobrinski, Stinson, Fugate,  
Kendrix, Kelley, McCane,  
Chapman, Wolfley, Stark,  
Staires, and Menz of the  
House

and

Stewart and McIntosh of the  
Senate

An Act relating to crimes and punishments; amending Section 2, Chapter 336, O.S.L. 2025 (21 O.S. Supp. 2025, Section 365), which relates to the corrupt use of nonpublic information; prohibiting current or former officers, employees, or contractors of a political subdivision from corrupt use of nonpublic information; clarifying that violation shall be grounds for termination from government employment; and providing an effective date.

SUBJECT: Crimes and punishments

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 2, Chapter 336, O.S.L. 2025 (21 O.S. Supp. 2025, Section 365), is amended to read as follows:

Section 365. A. Any current or former officer, employee, or contractor of a state agency or political subdivision who obtains or obtained nonpublic information because of his or her government employment, government office, or contract with a state agency or political subdivision, and who corruptly, as defined by Section 94 of Title 21 of the Oklahoma Statutes:

1. Uses such information for personal gain or benefit;

2. Acquires or divests a pecuniary interest in any property, transaction, or enterprise which may be affected by such information;

3. Speculates or wagers on the basis of such information;

4. Uses such information in a way that would affect any personal pecuniary interest, including an interest held by an immediate family member, or business entity with which the immediate family member is associated;

5. Discloses such information to any person, group, entity, or others not entitled to receive such information; or

6. Aids another to commit any act set forth in paragraphs 1 through 5 of this subsection,

shall, upon conviction, be guilty of a felony punishable by a fine not to exceed Ten Thousand Dollars (\$10,000.00), by imprisonment in the custody of the Department of Corrections for a term not to exceed five (5) years, or by both such fine and imprisonment. Any person convicted of violating any provision of this section shall be prohibited from holding any public office in this state and shall be prohibited from entering into any ~~state~~ contract with a state agency or political subdivision.

B. Violation of any provision of this section shall be grounds for removal from office or termination from ~~state~~ government employment.

C. For purposes of this section, the term "immediate family member" means:

1. A spouse;

2. A spouse's parents;

3. A child by birth or adoption;

4. A stepchild;

5. A parent;

6. A grandparent;
7. A grandchild;
8. A sibling;
9. A spouse's siblings; or
10. A spouse of any immediate family member listed in this subsection.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 24th day of March, 2026.

\_\_\_\_\_  
Presiding Officer of the House  
of Representatives

Passed the Senate the 28th day of April, 2026.

\_\_\_\_\_  
Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this \_\_\_\_\_  
day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.  
By: \_\_\_\_\_

Approved by the Governor of the State of Oklahoma this \_\_\_\_\_  
day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this \_\_\_\_\_  
day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.  
By: \_\_\_\_\_